IN THE UNITED STATES BANKRUPTCY COURT
FOR THE SOUTHERN DISTRICT OF ALABAMA
SOUTHERN DIVISION

IN RE:	)	
	)	
JANE Q. SAMPLE,	)	Case No. 26-10000-XYZ
	)	Chapter 13
Debtor.	)	

MOTION FOR RELIEF FROM THE AUTOMATIC STAY AND BRIEF IN SUPPORT

NOTICE OF OPPORTUNITY TO OBJECT AND FOR HEARING

Pursuant to Local Rule, the court will consider this motion, objection, or other matter without further notice or hearing unless a party in interest files a written objection within 14 days from the date of service of this paper. If you object to the relief requested in this paper, you must file your written objection stating the specific ground or grounds on which your objection is based with the clerk of the court and serve a copy on the movant's attorney, Alex B. Counsel, Example Law LLC, 100 Main Street, Mobile, Alabama 36602.

If you file and serve a written objection stating the specific ground or grounds on which your objection is based within the time permitted, the court will schedule a hearing and you will be notified. If you do not file a proper written objection within the time permitted, the court will consider that you do not oppose the granting of the relief requested in the paper, will proceed to consider the paper without further notice or hearing, and may grant the relief requested.

Example Credit Union (the "Movant"), a creditor of the Debtor, moves under 11 U.S.C. § 362(d)(1) and Fed. R. Bankr. P. 4001(a) and 9014 for relief from the automatic stay as to the vehicle described below, and in support states as follows:

JURISDICTION

1. This Court has jurisdiction over this contested matter under 28 U.S.C. §§ 157 and 1334. This is a core proceeding under 28 U.S.C. § 157(b)(2)(G).

BACKGROUND

2. The Debtor filed a petition under chapter 13 of the Bankruptcy Code on January 5, 2026. The Movant holds a first-priority lien on the Debtor's 2021 sedan, perfected by notation on its certificate of title.

3. The Debtor's confirmed plan provides for the Movant to be paid directly. No direct payment has been received for the months of December 2025 through February 2026, and the Debtor's insurance on the vehicle has lapsed.

ARGUMENT

I. Cause exists to lift the stay

Section 362(d)(1) requires the Court to grant relief from the stay "for cause, including the lack of adequate protection of an interest in property." A debtor's failure to make the payments a plan requires, and to keep collateral insured, is cause. The Movant's interest is not adequately protected while the vehicle depreciates, uninsured, without payment.

II. The fourteen-day stay of the order should be waived

Rule 4001(a)(4) stays an order granting relief for fourteen days "unless the court orders otherwise." Because the vehicle is uninsured, any delay exposes the Movant to a loss it cannot recover.

WHEREFORE, the Movant asks the Court to enter an order granting relief from the automatic stay as to the vehicle, waiving the stay of Rule 4001(a)(4), and granting such other relief as is just.

Respectfully submitted,
/s/ Alex B. Counsel
Alex B. Counsel (ASB-0000-X00X)
EXAMPLE LAW LLC
100 Main Street
Mobile, Alabama 36602
(251) 555-0100
acounsel@example.com
Attorney for Example Credit Union

CERTIFICATE OF SERVICE

I hereby certify that on this the 2nd day of March, 2026, I served a copy of the foregoing motion on the following by electronic notice through the Court's CM/ECF system or by first-class United States Mail, postage prepaid, as indicated:

Jane Q. Sample, 1 Example Road, Mobile, Alabama 36601 (by mail)
Chapter 13 Trustee (by CM/ECF)
Counsel for the Debtor (by CM/ECF)

/s/ Alex B. Counsel
Of Counsel